

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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WILLIAM SIMMONS

Plaintiffs

COMPLAINT

-against-

JURY TRIAL DEMANDED

CITY OF NEW YORK , DAVID CARO
Defendants

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PRELIMINARY STATEMENT

1. The defendants are the City of New York, hereinafter referred to as “THE CITY”, which was and still is a domestic municipal corporation, duly organized and existing by virtue of the Laws of the State of New York, which maintains the City of New York Police Department and DAVID CARO, hereinafter referred to as CARO, who while working as a police officer with the New York City Police Department, with other unknown New York City Police Officers, falsely arrested the plaintiff WILLIAM SIMMONS, on September 29, 2013. WILLIAM SIMMONS was arrested without a warrant and without probable cause. During the course of said arrest the plaintiff was caused to suffer injury due to the excessive force used by the defendants in effectuating said arrest and further the use of excessive force while the plaintiff was in the defendants custody in the precinct.

Thereafter the plaintiff complied with all the conditions precedent to the commencement of the within action against the defendant, “THE CITY”, by filing a Notice of Claim within ninety(90)days and appeared for an oral examination pursuant to the General Municipal Law and

has commenced this action within a year and ninety(90) days of the date that the within cause of action having been caused to accrue.

This lawsuit seeks compensatory and punitive damages from the defendants for this false arrest, imprisonment and physical injuries due to police brutality and excessive force during the course of these events.

II PARTIES

1. Plaintiff is an adult and resides in New York County.
2. The defendant the City of New York is a municipal corporation duly incorporated pursuant to the laws of the State of New York .
3. The defendant City of New York has established and maintains the New York City Police Department, hereinafter referred to as, NYPD, a constituent Department or Agency.
4. Defendant , CARO, is or was an employee of the NYPD at all relevant times. He is sued in his official and individual capacities.

III FACTUAL ALLEGATIONS

5. That on September 29, 2013, WILLIAM SIMMONS, was working as a security guard and patrolling his assigned area in the vicinity of West Houston Street and Washington Street in the Borough of Manhattan.
6. That the defendants without any legal justification demanded identification from the Plaintiff and then demanded that he cease doing his job and leave the area .
7. Thereafter, the defendants did, without any justification, attacked the plaintiff causing

him to suffer physical injuries that required him to seek medical attention.

8. The defendants then arrested the plaintiff and brought him to the 1st precinct and thereafter, CARO, and other unidentified police officers did proceed to attack the plaintiff while he was in a jail cell causing him to suffer further injury

9. The plaintiff was incarcerated and charged with assault and other crimes.

10. The Plaintiff had to appear in Manhattan Criminal Court on numerous occasions to respond to said charges.

11. That on July 16, 2014, all charges were dismissed with prejudice by the Office of the Manhattan District Attorney.

12. The plaintiff has been physically and emotionally harmed by the Defendants' actions.

13. The Defendants' actions were taken under color of state law.

14. The Defendants' actions were reckless and taken in deliberate and callous indifference to Plaintiff's rights.

AS AND FOR A FIRST CAUSE OF ACTION

15. That, the plaintiff, WILLIAM SIMMONS, repeats, reiterates, and realleges each and every allegation as set forth in paragraphs 1 through 14 with same force and effect as if hereinafter more fully set forth at length herein.

16. That on September 29, 2013, the plaintiff, WILLIAM SIMMONS, was assaulted/battered by the defendant, and /or defendants by and through their agents, servants, and/or employees.

17. That, the plaintiff, WILLIAM SIMMONS, was assaulted/battered without justification and without cause and without excuse.

18. That the assault/battery took place in the vicinity of West Houston and Washington Streets in the County of New York, City and State of New York and in the 1st precinct thereafter.

19. That at all times hereinafter mentioned and on September 29, 2014, the defendant, CARO, was a New York City police officer, and/or agent, servant and/or employee of the defendant “THE CITY”, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, “THE CITY”.

20. That by reason of the foregoing, the plaintiff, WILLIAM SIMMONS, was injured rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was caused to suffer mental anguish; was unable to pursue his usual and regular activities; and, upon information and belief his injuries are permanent in nature and effect.

21. That this action falls within one or more of the exceptions as set forth in CPLR 1602, involving intentional actions, as well as the defendant, and /or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

22. That, by reason of the foregoing, the plaintiff, WILLIAM SIMMONS, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

23. That, the plaintiff, WILLIAM SIMMONS, repeats, reiterates, and realleges each and every allegation as set forth in paragraphs 1 through 22, with same force and effect as if hereinafter more fully set forth at length herein.

24. That , all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant,” THE CITY”, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant,” THE CITY”.

25. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, CARO, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, “THE CITY”.

26. That, the defendant, “THE CITY”, was additionally negligent, reckless and careless in the negligent hiring, negligent retention and negligent training of various police officers, agents, servants, and /or other employees, including but not limited to defendant , CARO, who was employed by the defendant,” THE CITY”.

27. That by reason of the foregoing, the plaintiff, WILLIAM SIMMONS, was injured, was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was caused to suffer mental anguish; was unable to pursue his usual and regular activities; and, upon information and belief his injuries are permanent in nature and effect.

28.. That this action falls within one or more of the exceptions as set forth in CPLR 1602, involving intentional actions, as well as the defendant, and /or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. That, by reason of the foregoing, the plaintiff, WILLIAM SIMMONS, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

30. That, the plaintiff, WILLIAM SIMMONS, repeats, reiterates, and realleges each and every allegation as set forth in paragraphs 1 through 29, with same force and effect as if hereinafter more fully set forth at length herein.

31. That, on September 29, 2013, the plaintiff, WILLIAM SIMMONS, was caused to be falsely arrested and falsely imprisoned without probable cause.

32. That, the plaintiff, WILLIAM SIMMONS, was arrested without an arrest warrant.

33. That, the false imprisonment took place in the vicinity of West Houston and Washington Streets, in the County of New York and State of New York. The plaintiff, WILLIAM SIMMONS, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

34. That the aforementioned false arrest and false imprisonment of the plaintiff, WILLIAM SIMMONS, was carried out by defendant CARO and by other police officers and/or other servants, agents, and/or employees of the defendant, "THE CITY", while working within the scope and course of employment with the defendant, "THE CITY".

35. That by reason of the foregoing, the plaintiff, WILLIAM SIMMONS, , was injured rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was caused to suffer mental anguish; was unable to pursue his usual and regular activities; and, upon information and belief his injuries are permanent in nature and effect.

36. That this action falls within one or more of the exceptions as set forth in CPLR 1602, involving intentional actions, as well as the defendant, and /or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

37. That, by reason of the foregoing, the plaintiff, WILLIAM SIMMONS, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH OF ACTION

38. That, the plaintiff, WILLIAM SIMMONS, repeats, reiterates, and realleges each and every allegation as set forth in paragraphs 1 through 37, with same force and effect as if hereinafter more fully set forth at length herein.

39. That , the aforementioned false arrest and false imprisonment of the plaintiff, WILLIAM SIMMONS, was caused due to a malicious prosecution of the plaintiff, WILLIAM SIMMONS, without cause, without reasonable cause, and without color of the law.

40. That, the arresting and investigating police, who were police officers, and /or other agents, servants, or were other employees of the defendant,” THE CITY”, failed to make a proper and thorough investigation of the facts, failed to make proper inquiries resulting in the prosecuted without probable cause, without reasonable cause and without color of the law.

41. That all criminal charges against the plaintiff, WILLIAM SIMMONS, were dismissed upon motion of the Manhattan District Attorney’s Office on July 16, 2014

42. That by reason of the foregoing, the plaintiff, WILLIAM SIMMONS, was injured, rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was caused to suffer mental anguish; was unable to pursue his usual and regular activities; and, upon information and belief his injuries are permanent in nature and effect.

43. That this action falls within one or more of the exceptions as set forth in CPLR 1602, involving intentional actions, as well as the defendant, and /or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

44. That, by reason of the foregoing, the plaintiff, WILLIAM SIMMONS, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

45. That, the plaintiff, WILLIAM SIMMONS, repeats, reiterates, and realleges each and every allegation as set forth in paragraphs 1 through 44, with same force and effect as if hereinafter more fully set forth at length herein.

46 . That the plaintiff, WILLIAM SIMMONS, did not commit any illegal act, nor did the individually named defendant have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. 1983 and the Constitution of the State of New York.

47. That at all times hereinafter mentioned, the defendant, CANO, and other unnamed police officers, were employed in their respective capacity by the defendant, “THE CITY”, and were acting under the color of his official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant,” THE CITY”.

48. That at all times hereinafter mentioned, the defendant CANO, was employed in his respective capacity by the defendant, “THE CITY” and was acting under the color of the policies , statutes, ordinances, rules, and regulations of the defendant, “ THE CITY”.

49. Defendant CANO, is being sued in his personal and official capacities for violation of plaintiff’s constitutional rights pursuant to 42 U.S.C. Section 1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agent,

servants and/or employees, “THE CITY” has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, WILLIAM SIMMONS, or other citizens injured thereby; or to take any disciplinary action whatsoever against any of their employees or agents.

50. The unlawful and illegal conduct of the defendants, their agents, servants, and/or employees and each of them deprived plaintiff, WILLIAM SIMMONS, of the following rights, privileges, and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, WILLIAM SIMMONS to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; The right of plaintiff, WILLIAM SIMMONS, to be informed of the nature and cause of the accusation against him as secured to him under the sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, WILLIAM SIMMONS not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

51. That the deprivation of Plaintiff’s Constitutional Rights was the result of the unconstitutional acts of defendant CANO and other unnamed New York City Police Officers, while acting under color of state law and within the scope of their employment.

52. That the deprivation of plaintiff’s Constitutional Rights was the result of the defendant, THE CITY’S, custom and/or policy of arresting individuals without probable cause.

53. That the deprivation of plaintiff’s Constitutional Rights was the result of the defendant, THE CITY’S, custom and/or policy of arresting minorities without probable cause.

54. That the deprivation of plaintiff, WILLIAM SIMMONS Constitutional Rights was the result of the defendant, THE CITY'S custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

55. That the said custom and/or policies may be inferred from the existence of other similar Civil rights actions that have been brought against the defendant," THE CITY" .

56. That the detaining of the plaintiff, WILLIAM SIMMONS, without probable cause or justification was the result of custom and /or policies adopted by the defendant, "THE CITY".

57. That the deprivation of Plaintiff, WILLIAM SIMMONS Constitutional Rights was a result of the defendants arrest of the Plaintiff WILLIAM SIMMONS without probable cause..

58. That the deprivation of plaintiff's Constitutional Rights was a result of the defendant , THE CITY'S custom and policy in failing to discipline officers for the use of excessive force.

59. That the deprivation of plaintiff , WILLIAM SIMMONS'S Constitutional Rights was a result of the defendant , CANO and other police officers, use of excessive force.

60. That the custom and/or policies adopted by the defendant, "THE CITY" exhibited a deliberate indifference to the Constitutional Rights of plaintiff, WILLIAM SIMMONS.

61. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious prosecution due to the negligence of the defendant and/or defendants, the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, WILLIAM SIMMONS, was caused to have his civil rights as

guaranteed by the U.S. Constitution , including but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and /or defendants herein, as set forth under 42 U.S. C. Section 1983.

62. That by reason of the foregoing, the plaintiff, WILLIAM SIMMONS, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief his injuries and permanent in nature and effect.

63. That this action falls within one or more of the exceptions as set forth in CPLR 1602, involving intentional actions, as well as the defendant, and /or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

64. That by reason of the foregoing, the plaintiff, WILLIAM SIMMONS, has sustained damages in an amount in excess of the jurisdictional limits of all the Lower Courts of the State of New York.

WHEREFORE, plaintiff, WILLIAM SIMMONS, demands judgment against the defendants, on the First, Second, Third, Fourth and Fifth causes of action in an amount in excess of the jurisdictional limits of all of the Lower Courts of the State of New York; together with interest , as well as costs and disbursements and legal fees pursuant to 42 U.S. C. Section 1988 , of these causes of actions

Dated: October 2, 2014
Newburgh, New York

Yours, etc.

Andrew Bersin
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